



SPONSOR: Sen. Brown & Sen. Pinkney & Sen. Townsend &
Rep. Bush & Rep. Heffernan & Rep. Snyder-Hall
Sens. Hansen, Hoffner, Huxtable, Sokola, Sturgeon; Reps.
Burns, Cooke, Morrison, Ross Levin, K. Williams,
Wilson-Anton

DELAWARE STATE SENATE
153rd GENERAL ASSEMBLY

SENATE BILL NO. 3

AN ACT PROPOSING AN AMENDMENT TO ARTICLE V OF THE DELAWARE CONSTITUTION RELATING TO VOTING.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF DELAWARE (Two-thirds of all members elected to each house thereof concurring therein):

Section 1. Amend § 4A, Article V of the Delaware Constitution by making deletions as shown by strike through and insertions as shown by underline as follows:

§ 4A. ~~General laws for absentee voting~~ Right to vote by absentee ballot without an excuse; permanent absentee status.

~~Section 4A. The General Assembly shall enact general laws providing that any qualified elector of this State, duly registered, who shall be unable to appear to cast his or her ballot at any general election at the regular polling place of the election district in which he or she is registered, either because of being in the public service of the United States or of this State, or his or her spouse or dependents when residing with or accompanying him or her, because of the nature of his or her business or occupation, because of his or her sickness or physical disability, because of his or her absence from the district while on vacation, or because of the tenets or teachings of his or her religion, may cast a ballot at such general election to be counted in such election district.~~

(a) A qualified elector of this State who is duly registered has the right to vote by absentee ballot without an excuse.

(b) When voting by absentee ballot, the following must occur:

(1)a. An absentee ballot must be requested for an election occurring in an election cycle.

b. If a request for an absentee ballot is made once in an election cycle no further requests are required to receive absentee ballots for elections occurring in that election cycle.

c. For purposes of paragraph (b)(1)a. of this Section, "election cycle" means the day after the date of the most recent general election through the date of the next general election.

(2) Each absentee ballot must contain an oath or affirmation that the qualified elector's vote is free from improper influence.

(c) Notwithstanding paragraph (b)(1)a. of this Section, a qualified elector may be granted permanent absentee status if any of the following apply to the qualified elector:

(1) Because the qualified elector is in the public service of the United States or of this State or is the spouse or dependent of a qualified elector in the public service of the United States or of this State and is accompanying the qualified elector.

(2) Because the qualified elector is in the armed forces of the United States or the merchant marine of the United States.

(3) Because the qualified elector is attached to and serving with the armed forces of the United States in the American Red Cross or United Service Organizations.

(4) Because the qualified elector is absent from this State because of illness or injury received while serving in the armed forces of the United States.

(5) Because the qualified elector is otherwise authorized under the federal Uniformed and Overseas Citizens Absentee Voting Act (UOCAVA), 52 U.S.C. § 20301 et seq., as amended, to vote by absentee ballot.

(6) Because the qualified elector is otherwise authorized by federal law to vote by absentee ballot.

(7) Because the qualified elector is sick or permanently physically disabled.

(8) Because the qualified elector's business or occupation is providing care to the qualified elector's parent, spouse, or child who is living at home and requires constant care due to illness, disability, or injury.

(9) Because the qualified elector is a citizen of the United States temporarily residing outside the territorial limits of the United States.

(d) For each election in which a qualified elector votes by absentee ballot under a permanent absentee status, the qualified elector shall take an oath or affirmation that the qualified elector remains eligible for permanent absentee status.

Section 2. Amend § 3, Article V of the Delaware Constitution by making deletions as shown by strike through and insertions as shown by underline as follows:

§ 3. Influencing voter; loss of vote; challenge; oath and affirmation; ~~perjury~~ perjury; ~~oath or affirmation for voting by absentee ballot.~~

(c) The oath or affirmation required under Section 4A of this Article for voting by absentee ballot is in lieu of the oath or affirmation required under this Section.

SYNOPSIS

This Act is the first leg of a constitutional amendment to eliminate the limitations on when an individual may vote absentee and provide an absolute right to vote by absentee ballot without an excuse. This Act is in response to the Supreme Court's decision in *Albence v. Higgins*, 2022 Del. LEXIS 377 (Del. 2022).

Although Section 1 of this Act creates an absolute right to vote by absentee ballot without an excuse, a qualified voter who desires to cast an absentee ballot must request an absentee ballot from the Department of Elections for each election cycle, unless the qualified voter is granted permanent absentee status. This State's current absentee voting law authorizes permanent absentee status for various reasons (see § 5503(k) of Title 15 of the Delaware Code) and this Act adopts most of those reasons. For each election in which a qualified voter votes by absentee ballot under a permanent absentee status, the qualified voter must take an oath or affirmation that the qualified voter remains eligible for permanent absentee status.

Section 2 of this Act requires all absentee ballots to include an oath or affirmation that the qualified voter's vote is free from improper influence. This oath or affirmation is in lieu of the oath or affirmation otherwise required under Section 3 of Article V of the Delaware Constitution.

Amending the Delaware Constitution requires not only the passing of the changes in this Act, but also passage of the same changes after the next general election by the next General Assembly.

This Act requires a greater than majority vote for passage because § 1 of Article XVI of the Delaware Constitution requires the affirmative vote of two-thirds of the members elected to each house of the General Assembly to amend the Delaware Constitution

Author: Senator Brown